

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 4335

By: Moore of the House

and

Hamilton of the Senate

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10 COMMITTEE SUBSTITUTE

11 An Act relating to animals; providing that a county,
12 municipality, or an agency shall have certain limited
13 authority over retail pet shops; exempting ordinances
14 enacted before a certain date; amending 4 O.S. 2021,
15 Section 30.8, which relates to animal shelter
16 operators and commercial pet breeders; changing
17 timeline for certain required notices; and providing
18 an effective date.

19 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

20 SECTION 1. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 30.17 of Title 4, unless there
22 is created a duplication in numbering, reads as follows:

23 A. A county or municipality, or any agency thereof may:

24 1. Adopt or enforce rules, administrative regulations, codes,
 or ordinances relating to the operation of a retail pet shop;

1 provided the pet shop is in compliance with the Commercial Pet
2 Breeders and Animal Shelter Licensing Act and other applicable
3 rules, regulation, codes, or ordinances; and

4 2. Regulate and inspect retail pet stores but may not ban or
5 otherwise effectively prohibit a retail pet shop or retail pet shop
6 owner for selling dogs and cats within the county or municipality
7 unless the shop or owner has received three or more convictions over
8 five (5) years for violating the Commercial Pet Breeders and Animal
9 Shelter Licensing Act.

10 B. This section does not apply to any county or municipal
11 ordinance enacted prior to January 1, 2026.

12 SECTION 2. AMENDATORY 4 O.S. 2021, Section 30.8, is
13 amended to read as follows:

14 Section 30.8. A. An animal shelter operator or commercial pet
15 breeder who is not in violation of the Commercial Pet Breeders and
16 Animal Shelter Licensing Act or any rule adopted under the
17 Commercial Pet Breeders and Animal Shelter Licensing Act may renew
18 the license of the person by:

19 1. Submitting a renewal application to the Oklahoma Department
20 of Agriculture, Food, and Forestry on the form prescribed by the
21 Department;

22 2. Complying with any other renewal requirements adopted by the
23 Department; and

24 3. Paying the required fee.

1 B. Any person who fails to apply for a renewal in a manner
2 prescribed by the Department, and whose license has expired, may not
3 engage in activities that require a license until the license has
4 been renewed.

5 C. Not later than ~~sixty (60)~~ ninety (90) days before the
6 expiration of the license, the Department shall send written notice
7 of the impending license expiration to the animal shelter operator
8 or commercial pet breeder at the last-known address according to the
9 records of the Department.

10 SECTION 3. This act shall become effective November 1, 2026.

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12 COMMITTEE REPORT BY: COMMITTEE ON GOVERNMENT OVERSIGHT, dated
13 02/25/2026 - DO PASS, As Amended.
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